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Sep 05 2017

STATE OF NORTH CAROLINA
UTILITIES COMMISSION
RALEIGH

DOCKET NO. E-2, SUB 1143

BEFORE THE NORTH CAROLINA UTILITIES COMMISSION

In the Matter of		
Application of Duke Energy Progress, LLC,	)	MOTION FOR
Pursuant to G.S. 62-133.14 and Commission	)	EXTENSION
Rule R8-70 for Approval of a Joint Agency Asset	)	OF TIME
Rider for Recovery of Joint Agency Asset Costs	)	

NOW COMES THE PUBLIC STAFF – North Carolina Utilities Commission, by and through its Executive Director, Christopher J. Ayers, and respectfully moves the Commission to grant an extension of time to file testimony in this matter. In support of this Motion, the Public Staff shows the following:

1. On June 21, 2017, Duke Energy Progress, LLC (DEP or the Company) filed an application and supporting testimony, pursuant to G.S. 62-133.14 and Commission Rule R8-70, for recovery of costs incurred by DEP for the acquisition and operation of North Carolina Eastern Municipal Power Agency's (NCEMPA) interest in five electric generating facilities that were formally owned jointly by DEP and NCEMPA.

2. On July 6, 2017, the Commission entered an Order Scheduling Hearings, Requiring Filing of Testimony, Establishing Discovery Guidelines, and Requiring Public Notice. In that Order, the Commission directed the Public Staff and other intervenors to file direct testimony and exhibits on or before Tuesday, September 5, 2017, and authorized DEP to file rebuttal testimony and exhibits on

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or before Wednesday, September 13, 2017. The evidentiary hearing is scheduled for Tuesday, September 19, 2017.

3. The Public Staff has been diligently investigating DEP's application through written discovery and informal discussions with the Company. However, due to the press of business, the Public Staff is not yet prepared to file its testimony. For this reason, the Public Staff would request an extension until Thursday, September 7, 2017, for the Public Staff and intervenors to file direct testimony, and until Friday, September 15, 2017, for DEP to file rebuttal testimony.

4. The Public Staff has asked the parties whether anyone objects to this requested extension of time, and no party objects.

WHEREFORE, the Public Staff requests that the Commission extend the deadline for the Public Staff and intervenors to file testimony to Thursday, September 7, 2017 and for DEP to file rebuttal to Friday, September 15, 2017.

Respectfully submitted, this the 5th day of September, 2017.

PUBLIC STAFF
Christopher J. Ayers
Executive Director

David T. Drooz
Chief Counsel

Electronically submitted
s/ Dianna W. Downey
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CERTIFICATE OF SERVICE

I certify I have this day served a copy of the foregoing MOTION on each of the parties of record in this proceeding or their attorneys of record in accordance with Commission Rule R1-39 by United States Mail, first class or better; by hand delivery; or by means of facsimile or electronic delivery upon agreement of the receiving party.

This the 5th day of September, 2017.

Electronically submitted
s/ Dianna W. Downey